



Criminal Procedure (Right of Reply) Act 1964

1964 CHAPTER 34

An Act to amend the law relating to the prosecution's right of reply at trials on indictment.

[10th June 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Right of reply
at trials on
indictment.

1.—(1) Upon the trial of any person on indictment—

- (a) the prosecution shall not be entitled to the right of reply on the ground only that the Attorney General or the Solicitor General appears for the Crown at the trial; and
- (b) the time at which the prosecution is entitled to exercise that right shall, notwithstanding anything in section 2 of the Criminal Procedure Act 1865, be after the close of the evidence for the defence and before the closing speech (if any) by or on behalf of the accused.

28 & 29 Vict.
c. 18.

(2) In section 3 of the Criminal Evidence Act 1898 the words from the beginning to “for the defence” are hereby repealed.

61 & 62 Vict.
c. 36.

2.—(1) This Act may be cited as the Criminal Procedure (Right of Reply) Act 1964.

Short title,
commence-
ment and
extent.

(2) This Act shall come into operation at the time of expiration of a period of one month beginning with the day on which it was passed, but shall not apply to any trial at which the accused was arraigned before that time.

(3) This Act does not extend to Scotland or Northern Ireland.